NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 08.07.2026 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

CORAM : SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, HON'BLE MEMBER (TECHNICAL)

APPLICATION NUMBER	**: IA(CA)/96/(CHE)/2026**
PETITION NUMBER	**: C.P.(CAA)/51(CHE)2025**
NAME OF THE APPLICANT	**: Shasun Leasing and Finance Private Limited & another**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Rule 11 of NCLT Rules 2016**

ORDER

Present : Ld. Counsel Mr. Pawan Jhabakh for the Applicant.

Ld. Counsel Mr. Raj Jhabakh for IT Department.

In this case Hon'ble NCLAT has dismissed the appeal by Income Tax on 08.06.2026. **Applicant is directed** to file copy of the order by way of memo.

Heard and considered.

This is an Application seeking modification of the mistakes in the order dated 10.03.2026 passed in CP(CAA)/51/CHE/2026. The order is hereby modified as follows:

1. In Page 1 – **Cause Title of the order**, - it is modified as - "In the matter of **Composite Scheme of Arrangement amongst** Shasun Leasing and Finance Private Limited (Transferor Company) and Axxelent Pharma Science Private Limited (Transferee Company) **and their respective Shareholders".**

In Page 1 of the order – it is modified as – **"AXXELENT PHARMA SCIENCE PRIVATE LIMITED,** CIN: U24110TN2019PTC131943, Having its Registered Office at No. 3, Jagadeeswaran Street, Thygarayanagar, Chennai - 600017,

... 2nd Petitioner / Transferee Company.

2. Point 1 at (**Page 3, of the order**) – it is modified as **"**This Joint Company Petition has been filed by SHASUN LEASING AND FINANCE PRIVATE LIMITED (hereinafter referred as 1st Petitioner Company / Transferor **Company),** and AXXELENT PHARMA SCIENCE PRIVATE LIMITED (hereinafter referred as **2nd Petitioner Company** / Transferee Company) under section 230- 232 **read with Section 55 and Section 66** of the Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules') for approval of the **Composite** Scheme of Arrangement (hereinafter referred to as the **'SCHEME')** proposed between the Petitioners Company"**.**

3. Point 3 at **(Page 3, of the Order)**, – it is modified as - **SCHEME SUMMARY** The Scheme provides for the Arrangement between SHASUN LEASING AND FINANCE PRIVATE LIMITED with AXXELENT PHARMA SCIENCE PRIVATE LIMITED **and their respective the Shareholders.** Both Petitioner Companies come under the jurisdiction of this Tribunal.

4. Point 11 at **(Page 17, of the Order), -** it is modified as- **"**11.1. This Tribunal is of the view that the scheme as contemplated by the Petitioner companies seems to be prima facie not, in any way detrimental to the interest of the members of the Companies. In view of the absence of any

material objections from any statutory authorities and since all the requisite statutory compliances have been fulfilled, this Tribunal sanctions the **Composite Scheme of Arrangement** as well as the prayer made therein".

5. **Point 12 at (Page 18, of the Order**):

   Point 12(i) (**Page 18, of the Order**), – it is modified as - "That all properties, rights and interests of the **Transferor Company** shall, pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the **Transferee Company** in terms of the Scheme".

   Point 12 (ii) **Page 18 of the Order**) - – it is modified as – "That all the liabilities, powers, engagements, obligations and duties of the **Transferor Company** shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the **Transferee Company** in terms of the Scheme.

   Point 12 (iii) **Page 18 & 19, of the Order**); – it is modified as **- That various parts of the Scheme should be implemented in the following manner:**

   APart II - Issuance of New -NCRPS by the Transferee Company in lieu of the amount of Accumulated Unpaid Preference Dividend due and payable to the NCRPS Holders within 20 (Twenty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme;

   B.Part III - Conversion of the New NCRPS into equity shares of the Transferee Company within 20 (Twenty) days from the date of

receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme;

C.Part IV - Amalgamation of Transferor Company into and with the Transferee Company within 30 (Thirty) days from the date of receipt of certified copy of the order of the Hon'ble Tribunal sanctioning the Scheme which shall be considered as the Appointed Date and the Effective Date in accordance with section 230 (5) & (6) of the Companies Act 2013.

Point 12 (iv) **Page 19, of the Order**); – it is modified as **-** That the 'Effective Date' shall be defined as per the Clause **1.7 of Part I** of the scheme.

Point 12 (vi) **Page 19, the of the Order)**; – it is modified as **-** That all proceedings now pending by or against the **Transferor Company** shall be continued by the **Transferee Company**.

Point 12 (vii) **Page 19, of the Order**); – it is modified as **-** That all the employees/workmen of the **Transferor Company** in service on the date immediately preceding the date on which the Scheme finally takes effect shall become the employees of the **Transferee Company** without any break or interruption in their service with all the benefits.

Point 12 (viii) **Page 19, of the Order**); – it is modified as **-** That the **Transferee Company** shall file the revised Memorandum and Articles of Association with the Registrar of Companies, concerned and further make the requisite payments of the differential fee (if any) for the enhancement of authorized capital of the Resultant Company after setting off the fees paid by the Petitioner Companies.

This order shall be read as part of the order dated 10.03.2026 passed in CP(CAA)/51/CHE/2025.

Accordingly, **IA(CA)/96/(CHE)/2026** is allowed and disposed of.

Sd/-	**Sd/-**
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
Member (Technical)	**Member (Judicial)**

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